



Terms Of Use

The Great Canadian Swim **Effective Date [July 14, 2026]**

Welcome to **The Great Canadian Swim** ("TGCS," "we," "us," or "our").

These Terms of Use ("Terms") form a legally binding agreement between you ("you," "your," or "User") and The Great Canadian Swim governing your access to and use of our mobile application, website, digital platforms, events, challenges, community features, and related services.

By accessing, downloading, registering for, or using any portion of the Platform, you acknowledge that:

- You have read and understand the terms;
- You agree to be legally bound by these Terms;
- You agree to comply with all applicable laws and regulations;
- You understand that additional policies may apply to certain features.

If you do not agree to these Terms, you must not access or use the Platform.

1. Definitions

For purposes of these Terms, the following definitions apply:

"Account"

Means a registered user profile created to access certain features of the Platform.

"Challenge"

Means any swimming challenge, virtual event, community initiative, fundraising campaign, milestone activity, or participation-based program offered through the Platform.

"Content"

Means all information, text, graphics, images, videos, designs, data, software, communications, and materials available through the Platform.

"Platform"



Means The Great Canadian Swim mobile application, website, digital services, online community, associated software, features, tools, events, and related services operated or provided by The Great Canadian Swim.

“Services”

Means all products, features, functionality, resources, programs, and activities made available through the Platform.

“Third-party Services”

Means external services, platforms, websites, applications, technologies, payment processors, wearable device integrations, social networks, or other providers that are not owned or controlled by The Great Canadian Swim.

“User”

Means any individual who accesses, downloads, registers for, or uses the Platform.

“User Content”

Means any content submitted, uploaded, posted, shared, transmitted, or otherwise provided by a User through the Platform, including but not limited to:

- Swim activity information;
- Comments;
- Photographs;
- Videos;
- Stories;
- Profile information;
- Achievements;
- Team information;
- Fundraising content.

2. Purpose of the Platform

The Great Canadian Swim is a Canadian community initiative designed to encourage swimming, promote healthy lifestyles, foster inclusion, build community, raise awareness of chronic illnesses and invisible disabilities, and support charitable and educational initiatives.

The Platform is intended for information, educational, recreational, motivational, and community engagement purposes only.



Nothing within the Platform should be interpreted as creating any professional, medical, therapeutic, coaching, fiduciary, employment, agency, partnership, or joint venture relationship between you and The Great Canadian Swim.

A. Relationship Between User and Organization

Nothing contained within these Terms creates a partnership, employment relationship, agency relationship, sponsorship relationship, fiduciary relationship, professional relationship, or special relationship between you and The Great Canadian Swim.

B. No Reliance

You acknowledge that your use of the Platform is voluntary and that you do not rely on the Platform as a substitute for professional advice, supervision, instruction, medical care, emergency services, or independent decision-making.

C. Volunteer and Sponsor Protection

Where applicable, protections and limitations contained within these Terms extend to The Great Canadian Swim's directors, officers, employees, volunteers, contractors, sponsors, partners, affiliates, licensors, and service providers.

D. No Guarantee of Community Interaction

The Great Canadian Swim does not guarantee the identity, conduct, reliability, accuracy, or intentions of other users. Users are responsible for exercising appropriate judgement when interacting with others through the Platform.

E. User Responsibility for Account Activity

You are solely responsible for all activity conducted through your Account, whether authorized by you or not, unless unauthorized access occurred due to a failure by The Great Canadian Swim to meet applicable legal obligations.

3. Eligibility

To use the Platform, you represent and warrant that:

- You are legally capable of entering into a binding agreement;
- The information you provide is accurate and complete;
- You will comply with these Terms and all applicable laws;
- You are not prohibited from using the Platform under applicable law.

Users under the age of majority in their province or territory may use the Platform only with the consent and supervision of a parent or legal guardian, who agrees to be bound by these Terms on the minor's behalf.



We reserve the right to request reasonable proof of age or parental consent.

4. Your Account

To access certain features, you may be required to create an account.

You agree to:

- Provide truthful and accurate information;
- Maintain current account information;
- Keep your password confidential;
- Promptly notify us of any unauthorized access;
- Accept responsibility for activities occurring under your account.

You may not:

- Create an account using false information;
- Impersonate another person or organization;
- Transfer or sell your account;
- Allow another individual to use your account without permission.

We reserve the right to suspend or terminate accounts that violate these Terms.

5. Acceptable Use

You agree to use the Platform responsibly and lawfully.

You must not:

- Violate any law or regulation;
- Interfere with the operation or security of the Platform;
- Attempt unauthorized access to any account or system;
- Upload malicious software, viruses, or harmful code;
- Use bots, automated scripts, or data scraping tools without authorization;
- Attempt to reverse engineer, copy, or exploit the Platform;
- Disrupt the experience of other users;
- Misuse fundraising features;
- Submit fraudulent information;
- Use the Platform for commercial purposes unless expressly authorized.

6. Community Standards



The Great Canadian Swim is built on respect, inclusion, encouragement, and kindness.

Users must not post or share content that:

- Is unlawful;
- Promotes violence or hatred;
- Contains harassment, bullying, discrimination, or intimidation;
- Contains sexually explicit material;
- Contains graphic violence;
- Promotes self-harm;
- Contains false or misleading information;
- Infringes another person's rights;
- Violates intellectual property rights;
- Promotes scams or fraudulent fundraising;
- Advertises unauthorized commercial products or services;
- Contains spam or repetitive content.

We may remove content or suspend accounts that violate these standards.

7. User Content

You retain ownership of the content you create and upload, including photographs, videos, comments, stories, swim logs, and other materials ("User Content").

By submitting User Content, you grant The Great Canadian Swim a non-exclusive, world-wide, royalty-free, transferable, sub-licensable license to host, reproduce, store, display, distribute, adapt (such as resizing or formatting for different devices), and otherwise use your User Content solely as necessary to operate, maintain, improve, and promote the Platform and related initiatives.

You represent and warrant that:

- You own or have the necessary rights to the User Content;
- Your User Content does not infringe on the rights of others;
- Your User Content complies with these Terms.

You remain responsible for your User Content.

We reserve the right, but not the obligation, to review, moderate, remove, or refuse any User Content that we believe violates these Terms or may expose the platform or its users to legal or reputational risk.



8. Intellectual Property

Unless otherwise stated, all rights, title, and interest in the Platform, including its software, graphics, branding, text, designs, databases, audiovisual works, features, and content created by The Great Canadian Swim, are owned by or licensed to The Great Canadian Swim and are protected by applicable intellectual property laws.

No ownership rights are transferred to you through your use of the Platform.

Except as expressly permitted, you may not copy, reproduce, modify, distribute, publish, sell, license, or create derivative works from any part of the Platform without prior written permission.

9. Trademarks

“The Great Canadian Swim,” associated logos, slogans, graphics, and branding are trademarks or trade dress of The Great Canadian Swim unless otherwise indicated.

You may not use trademarks without prior written consent.

10. Donations and Fundraising

The Platform may provide opportunities to donate, fundraise, sponsor initiatives, or support charitable activities.

Participation in fundraising activities does not guarantee:

- Donations;
- Sponsorships;
- Fundraising success;
- Tax receipts;
- Promotional opportunities.

The processing of donations may be handled by third-party payment providers, and additional terms may apply.

11. Third-Party Services

The Platform may integrate with or link to third-party services, including fitness devices, wearable technologies, mapping services, social media platforms, payment processors, and analytics providers.



We do not own or control these third-party services and are not responsible for their content, availability, accuracy, privacy, or terms.

Your use of third-party services is governed by their respective agreements.

12. Availability of the Platform

We strive to provide a reliable and accessible Platform; however, we do not guarantee that the Platform will always be available, uninterrupted, secure, or error-free.

We may modify, suspend, discontinue, or remove any feature or portion of the Platform at any time without notice.

13. Suspension and Termination

We may suspend, restrict, or terminate your access to the Platform if we reasonably believe that:

- You have violated these Terms;
- Your use creates legal, security, or operational risks;
- Your conduct harms other users or Platform;
- Continued access is no longer appropriate.

Termination does not limit any other rights or remedies available to us.

14. No Warranties

To the fullest extent permitted by law, the Platform is provided on an “as is” and “as available” basis.

We make no warranties, representations, or guarantees regarding the availability, reliability, accuracy, completeness, security, or suitability of the Platform or its content.

15. Limitation of Liability

To the fullest extent permitted by applicable law, The Great Canadian Swim, its directors, officers, employees, volunteers, contractors, sponsors, partners, affiliates, licensors, and service providers shall not be liable for any indirect, incidental, special,



consequential, exemplary, or punitive damages, or for any loss of profits, revenue, data, goodwill, business opportunities, or other intangible losses arising out of or related to your use of, or inability to use, the Platform.

Nothing in these Terms limits liability where such limitation is prohibited by applicable law.

16. Indemnification

You agree to indemnify, defend, and hold harmless The Great Canadian Swim and its directors, officers, employees, volunteer, contractors, sponsors, partners, affiliates, licensors, and service providers from and against any claims, liabilities, damages, losses, costs, and expenses (including reasonable legal fees) arising from:

- You use of the Platform;
- Your breach of these Terms;
- Your User Content;
- Your violation of any law or the rights of another person.

17. Governing Law

These Terms are governed by the laws of the Province of Ontario and the applicable federal laws of Canada, without regard to conflict law principles.

Subject to any mandatory jurisdiction over any dispute arising from or relating to these Terms or the Platform.

18. Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect.

19. Entire Agreement

These Terms, together with any policies expressly incorporated by reference (including our Privacy Policy, Disclaimer, Community Guidelines, and any other applicable policies), constitute the entire agreement between you and The Great Canadian Swim regarding your use of the Platform.

20. Account Registration



Certain features of the Platform require you to create an Account.

When registering, you agree to:

- Provide accurate, complete, and current information;
- Maintain and promptly update your information as necessary;
- Create only one personal Account unless expressly authorized by The Great Canadian Swim;
- Keep your login credentials confidential;
- Maintain the security of your Account and any device used to access the Platform.

You are responsible for ensuring that the information associated with your Account remains accurate.

21. Account Security

You are solely responsible for safeguarding your username, password, authentication credentials, and any other security information associated with your Account.

You agree to notify The Great Canadian Swim immediately if you:

- Believe your Account has been compromised;
- Suspect unauthorized access;
- Discover any security vulnerability related to the Platform.

The Great Canadian Swim is not responsible for losses resulting from your failure to maintain appropriate Account security.

22. Personal Accounts

Accounts are intended for individual use unless expressly authorized.

You may not:

- Share your login credentials with another person;
- Allow another person to use your Account;
- Purchase, sell, transfer, lease, or assign your Account;
- Impersonate another individual or organization.

23. Organizational Accounts



Where organizational, school, club, corporate, fundraising, or team accounts are made available, the individual creating the Account represents and warrants that they have the legal authority to act on behalf of that organization.

The organization remains responsible for all activity conducted through its Account.

24. User Responsibilities

You agree to use the Platform responsibly and in accordance with these Terms.

You are responsible for:

- All activity conducted through your Account;
- Maintaining the confidentiality of your login credentials;
- Ensuring that information you submit is truthful;
- Complying with applicable laws;
- Complying with applicable swimming facility rules and safety requirements;
- Respecting other users.

25. Prohibited Activities

You agree that you will not:

- Violate any applicable law or regulation;
- Use the Platform for unlawful purposes;
- Impersonate another person or organization;
- Interfere with the operation of the Platform;
- Attempt unauthorized access to any system;
- Introduce malware, viruses, ransomware, or malicious code;
- Use automated bots, crawlers, spiders, or scraping tools without authorization;
- Reverse engineer, recompile, or attempt to discover source code;
- Interfere with another user's enjoyment of the Platform;
- Engage in fraudulent fundraising;
- Manipulate swim distances or achievements;
- Exploit software bugs;
- Attempt to circumvent security measure;
- Create multiple fraudulent Accounts;
- Use the Platform to advertise unauthorized products or services;
- Upload illegal or infringing material

26. Fraudulent Activity



The Great Canadian Swim reserves the right to investigate any suspected fraudulent activity, including but not limited to:

- Falsified swim distances;
- Falsified fundraising activities;
- Fraudulent donations;
- Multiple Accounts created to gain unfair advantages;
- Abuse of rewards or promotional programs;
- Manipulation of leaderboards or rankings.

We may suspend or terminate Accounts pending investigation.

27. Accuracy of Information

You are responsible for ensuring that all information submitted through the Platform is accurate.

The Great Canadian Swim is not responsible for inaccuracies resulting from information provided by Users or third-party integrations.

28. Reporting Security Concerns

If you discover a suspected security vulnerability within the Platform, you agree to report it promptly and refrain from publicly disclosing the vulnerability until The Great Canadian Swim has had a reasonable opportunity to investigate and address the issue.

29. Account Suspension

The Great Canadian Swim may suspend, restrict, or terminate an Account immediately, with or without notice, where we reasonably believe that:

- These Terms have been violated;
- Fraudulent activity has occurred;
- The security or integrity of the Platform is at risk;
- Continued access could expose users or the Platform to harm;
- Required by law;
- Necessary to protect the rights, property, safety, or legitimate interests of The Great Canadian Swim, its users, partners, or the public.

Suspension or termination does not limit any other rights or remedies available to The Great Canadian Swim.



30. Account Deletion

You may request deletion of your Account at any time through the Platform or by contacting us.

Deletion of an Account does not automatically delete information that:

- We are legally required to retain;
- Is necessary to resolve disputes;
- Is required for fraud prevention;
- Is required for accounting, audit, regulatory, or legal compliance purposes;
- Has been anonymized or aggregated so that it no longer identifies you.

The collection, use, retention, and deletion of personal information are governed by our Privacy Policy.

31. Survival

Any provisions of these Terms that, by their nature, should survive the suspension or termination of your Account, including those relating to intellectual property, indemnification, limitation of liability, dispute resolution, governing law, and any accrued rights or obligations will continue to apply after your Account has been suspended or terminated.

32. Changes to These Terms

We may update these Terms from time to time. The revised Terms will become effective upon posting or as otherwise indicated. Your continued use of the Platform after the effective date constitutes your acceptance of the updated Terms.

33. Contact Us

If you have questions regarding these Terms, please contact:

The Great Canadian Swim

greatcanadianswim@gmail.com

www.greatcanadianswim.ca



GREAT CANADIAN SWIM
trying counts